

that is, to illustrate the principle by instances, a tenant by the curtesy, or in dower, or by *elegit*, as claiming through the *cestui que trust* or trustee, though in the *post*, is bound by and may take advantage of the trust; but, according to the doctrine laid down by Lord Northington, the lord who comes in by escheat is not in any sense a privy to the trust, and therefore can neither reap a benefit from it on failure of heirs of the *cestui que trust*, nor is bound by the equity on failure of heirs of the trustee (*b*).

(*b*) It is clear that [prior to 47 & 48 V. c. 71], the lord [could] not acquire an equitable interest by escheat: *Burgess v. Wheate*, 1 Ed. 177; *Cox v. Parker*, 22 Beav. 168; but whether a lord taking the legal estate by escheat shall or not be bound by the trust, has never been decided.

See *post*, c. xii. s. 3. The Trustee Act, 1850, s. 15, enables the Court to make an order on failure of heirs of the trustee, but is the *Crown* bound by the Trustee Act? See note on second section of the Trustee Act, *post*. [See also 44 & 45 V. c. 41, s. 30.]